		the indemnity claim of necessity arises out of the same occurrences or series of occurrences as asserted by the plaintiff." (*Id.* at 39.) Here, the proposed Cross-Complaint asserts causes of action for 1) express indemnity, 2) equitable indemnity, and 3) declaratory relief. The Complaint alleges that Defendants breached the warranty of habitability and breached a lease agreement by failing to maintain the premises and make certain repairs at the residence that Plaintiffs were renting. Defendant Vishnevski now alleges that Plaintiffs obligated by the terms of the lease to procure liability insurance and Plaintiff agreed to indemnify and defendant Vishnevski. Thus, the Cross-Complaint is compulsory. Even if the cross-complaint were permissive, leave to amend would be granted because it would not interfere with a trial date or otherwise prejudice the action. Moving Defendant to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to June 26, 2025, at 9:00 a.m. in this department. Plaintiff to give notice.
3	Saba v. Tayyan	Defendant Angel Tayyan's motion for protective order is **GRANTED as to John Saba, Jack Saba and George Saba's requests for admissions, set one, and DENIED as to the remaining discovery.** <u>Background facts</u> On April 17, 2023, Plaintiffs George Saba, John Saba, and Jack Saba filed this lawsuit against Defendant Angel Tayyan. According to the Complaint, in or about 1979, the parties' parents purchased property in Santa Ana. In 2008, the parties' mother (Josephine Saba) executed The Saba Family Irrevocable Inter Vivos Trust (the "2008 Trust"). The mother indicated that after her death, she wanted Plaintiffs to each receive 20% of her estate and for Defendant to receive 40%. One of the reasons Defendant was to receive a greater share was because Defendant promised that she would take care of Settlor if and when Settlor was unable to take care of herself. In 2015, Settlor executed a 2015 Restatement of Trust. The Complaint alleges Defendant took Settlor to execute the 2015 Restatement and failed to serve Plaintiffs with a copy of the document. The 2015 Restatement redistributed the 2008 Trust's assets such that Plaintiffs would receive only $30,000, $25,000, and $25,000. The Complaint alleges causes of action for 1) Breach of written contract; 2) Failure to serve Plaintiffs with documents pursuant to Probate Code Section 166061.7; 3) Breach of the implied covenant of good faith and fair dealing; 4) Fraud and deceit; 5) Negligent misrepresentation; 6) Elder abuse; 7) Undue influence; 8) Conversion; 9) Breach of fiduciary duty; 10) Negligence; 11) Intentional infliction of emotional distress; 12) Declaratory and injunctive relief; and 13) Fraud and deceit.